

Farmers Ins. Exchange (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 459, 478, fn. 4.)

Motion to Compel

Defendant Home Express Delivery Service, LLC dba Temco Logistics' unopposed motion to compel responses to special interrogatories, set one, is granted. (Code Civ. Proc., § 2030.290.) Plaintiff shall serve defendant written responses, without objections, to special interrogatories, set one, within 15 days of service of notice of entry of order.

Defendant's request for monetary sanctions is denied. However, plaintiff is admonished that repeated failures to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 459, 478, fn. 4.)

Motion to Compel

Defendant Home Express Delivery Service, LLC dba Temco Logistics' unopposed motion to compel further responses to requests for admission, set one, is granted. (Code Civ. Proc., § 2033.290.) Plaintiff shall serve defendant further responses to requests for admission, set one, numbers 1–2, 4–6, 8, 11–13, 19–21, and 30 within 15 days of service of notice of entry of order.

Defendant's request for monetary sanctions is denied. However, plaintiff is admonished that repeated failures to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 459, 478, fn. 4.)

9. S-CV-0056073 Berg, Jill Elaine v. Berg, Brendon

Motion to Compel Responses to Form Interrogatories, Set One

Plaintiff Advanced Test Equipment Corporation's unopposed motion to compel responses to form interrogatories, set one, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

Motion to Compel Responses to Special Interrogatories, Set One

Plaintiff Advanced Test Equipment Corporation's unopposed motion to compel responses to special interrogatories, set one, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

Motion to Compel Responses to Request for Production of Documents, Set One

Plaintiff Advanced Test Equipment Corporation's unopposed motion to compel responses to demand for production of documents, set one, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

Motion to Deem Request for Admissions, Set One, as Admitted

Plaintiff Advanced Test Equipment Corporation's unopposed motion to deem request for admissions, set one, as admitted, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

10. S-CV-0056216 Schlein, Brian v. Pacheco-Zepeda, Luis Alberto

Motion to Consolidate

Brian Schlein moves to consolidate S-CV-0053572 (previously consolidated with S-CV-0054679) with S-CV-0056216.

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc., § 1048, subd. (a).) Here, both matters involve the same motor vehicle collision on May 25, 2024 and overlapping (but not identical) parties. There are common questions of law and fact between these two actions. However, the parties have filed a notice of settlement of entire case in S-CV-0053572 indicating a request for dismissal would be filed following a petition for approval of compromise of claim of a minor. As it appears one of these actions has in substance resolved and the other has not, the distinct procedural postures of these actions do not lend themselves towards consolidation. The motion to consolidate is denied.

11. S-CV-0056872 Dowling, Teresa Evelyn v. Dept. of Motor Vehicles

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

First Amended Petition for Writ of Administrative Mandate

Petitioner seeks issuance of a writ of administrative mandate directing respondent to rescind its suspension of petitioner's driver's license or to require respondent to make reasonable accommodations for further testing. Respondent has answered the first amended petition.

Petitioner has not submitted an administrative record to the court as required by Code of Civil Procedure section 1094.5. While each party has submitted initial briefs, petitioner's brief filed July 16, 2026 is supported by deficient notice (providing respondent only 13